

# Evidence Packet

An affidavit of service, checked against location records

## Civil Court of the City of New York, County of Bronx

Atlas Bay Funding LLC,  
Plaintiff,  
- against -  
Maria Delarmo,  
Defendant.

INDEX No. CV-025236-25/BX  
PROCESS SERVER T. Ockham-Doyle  
LICENCE No. 1401648  
PREPARED FOR Maria Delarmo

This packet compares the affidavit of service filed against Maria Delarmo, index number CV-025236-25/BX, with the location records you supplied. It sets out what the affidavit claims, what your records show, and where the two cannot both be true. It draws no conclusion about what happened, and it is not a finding of fact.

## WHAT THIS CHECK FOUND

### CONFLICTS

#### Your location data conflicts with the affidavit.

The affidavit swears that you were served at 7:42 PM on June 12, 2025 at 2100 WHITE PLAINS ROAD, Bronx, NY 10462, by delivery to a person of suitable age and discretion, and mailing, under CPLR 308(2).

Your nearest location record is 10.6 km from that address.

Your own records put you away from the address on the affidavit at the time the server swore to, by more than the margins set out under “How this was worked out”.

*Location history shows where your phone was, not proof of where you were. A judge decides what happened.*

## EACH SWORN MOMENT, CHECKED

| SWORN MOMENT | TIME (NEW YORK)          | ADDRESS SWORN TO                        | RESULT    | NEAREST RECORD | SPEED NEEDED |
|--------------|--------------------------|-----------------------------------------|-----------|----------------|--------------|
| Service      | 7:42 PM on June 12, 2025 | 2100 WHITE PLAINS ROAD, Bronx, NY 10462 | Conflicts | 10.6 km        | —            |

## FINDINGS

### STRONG

#### **Your phone was somewhere else at that time**

Your location history has you in one place from 8:00 AM to 8:00 PM on June 12, 2025, and that place is 10.6 km from the address on the affidavit. The service claimed at 7:42 PM on June 12, 2025 falls inside that stay.

### WORTH CHECKING

#### **Nobody in your household matches that description**

The affidavit says the papers were left with someone else at your address, and describes that person as male, aged 56 to 66 and 5'11" to 6'3". That does not match any of the 2 people you listed.

CPLR 308(2) — delivery to a person of suitable age and discretion, and mailing

## WHERE THE RECORDS PLACE THE PHONE

A map could not be included in this packet. The coordinates behind it are in the tables below.

## THE LOCATION RECORDS USED

All 19 location records used in this check are listed. They are the records close in time to the sworn moments above; the rest of your location history was never sent off the device it was read on.

| TIME (NEW YORK)                      | KIND          | LATITUDE,<br>LONGITUDE | ACCURACY | SOURCE                           |
|--------------------------------------|---------------|------------------------|----------|----------------------------------|
| 12:00 AM on June 12, 2025 to 7:31 AM | Stay          | 40.85330,<br>-73.86750 | ± 19 m   | Timeline visit: HOME             |
| 7:31 AM on June 12, 2025             | Journey point | 40.85352,<br>-73.86746 | ± 39 m   | Google Timeline (Android export) |
| 7:34 AM on June 12, 2025             | Journey point | 40.84672,<br>-73.87622 | ± 56 m   | Google Timeline (Android export) |
| 7:37 AM on June 12, 2025             | Journey point | 40.83884,<br>-73.88545 | ± 48 m   | Google Timeline (Android export) |
| 7:40 AM on June 12, 2025             | Journey point | 40.83174,<br>-73.89445 | ± 44 m   | Google Timeline (Android export) |
| 7:43 AM on June 12, 2025             | Journey point | 40.82437,<br>-73.90283 | ± 26 m   | Google Timeline (Android export) |
| 7:46 AM on June 12, 2025             | Journey point | 40.81764,<br>-73.91199 | ± 38 m   | Google Timeline (Android export) |
| 7:49 AM on June 12, 2025             | Journey point | 40.81022,<br>-73.92045 | ± 40 m   | Google Timeline (Android export) |

| TIME (NEW YORK)                      | KIND          | LATITUDE,<br>LONGITUDE | ACCURACY | SOURCE                           |
|--------------------------------------|---------------|------------------------|----------|----------------------------------|
| 7:52 AM on June 12, 2025             | Journey point | 40.80284,<br>-73.92912 | ± 27 m   | Google Timeline (Android export) |
| 7:55 AM on June 12, 2025             | Journey point | 40.79544,<br>-73.93786 | ± 86 m   | Google Timeline (Android export) |
| 7:58 AM on June 12, 2025             | Journey point | 40.78812,<br>-73.94686 | ± 27 m   | Google Timeline (Android export) |
| 8:00 AM on June 12, 2025 to 8:00 PM  | Stay          | 40.78362,<br>-73.95276 | ± 25 m   | Timeline visit: WORK             |
| 8:00 PM on June 12, 2025             | Journey point | 40.78317,<br>-73.95250 | ± 36 m   | Google Timeline (Android export) |
| 8:05 PM on June 12, 2025             | Journey point | 40.79563,<br>-73.93760 | ± 57 m   | Google Timeline (Android export) |
| 8:10 PM on June 12, 2025             | Journey point | 40.80785,<br>-73.92323 | ± 75 m   | Google Timeline (Android export) |
| 8:15 PM on June 12, 2025             | Journey point | 40.81961,<br>-73.90867 | ± 21 m   | Google Timeline (Android export) |
| 8:20 PM on June 12, 2025             | Journey point | 40.83207,<br>-73.89385 | ± 62 m   | Google Timeline (Android export) |
| 8:25 PM on June 12, 2025             | Journey point | 40.84345,<br>-73.87944 | ± 38 m   | Google Timeline (Android export) |
| 8:29 PM on June 12, 2025 to 11:29 PM | Stay          | 40.85350,<br>-73.86730 | ± 36 m   | Timeline visit: HOME             |

## DEADLINES

If you were served in any way other than in person, and you did not personally get notice in time to defend the case, you may be able to ask the court to reopen it within one year of learning about the judgment, and no more than five years after it was entered. You also have to show you have a defence worth hearing. For you that is one year after you found out, which is March 14, 2027 and five years after the judgment was entered, which is August 1, 2030. The earlier of the two is the one that matters. A judgment can be reopened when the court did not have jurisdiction, which includes service that was not done properly. There is no stated one-year limit for that ground, but act promptly.

EARLIEST OF THOSE LIMITS March 14, 2027

## HOW THIS WAS WORKED OUT

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Each sworn moment is compared with your location records within 3 hours of it, on either side. A record within 300 metres of the sworn address counts as being there; a record's own stated accuracy is added to that margin. Where the records place your phone elsewhere, the speed needed to reach the sworn address in the time available is calculated, and compared against 80 km/h and 40 km/h door to door. Those margins are deliberately generous towards the affidavit: they are set so that a conflict is reported only where the records leave no room for the sworn account.

This is a comparison of records, not a finding of fact. Location history can be wrong, a phone can be left behind or lent to somebody else, and an address can be geocoded to the wrong doorway. Nothing in this packet says that anybody lied.

## WHAT THIS PACKET WAS BUILT FROM

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These are SHA-256 digests. Anyone holding the same affidavit file, or the same location records, can compute them and confirm that this packet describes those and not something else.

### AFFIDAVIT FILE

87c88b5cbcb341efb5eeafc76f90e2093c31127380149d420eed152d48df3d8f

### LOCATION RECORDS (19)

94c6b1e36abf5c259e1a15c5c6912b00447536d823fca26cbd1d97bfb939a3a2

Prepared by ServeTrace at 11:10 AM on September 23, 2026 (New York time). Engine 0.1.0, thresholds 2026.09-v1.

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ServeTrace is not a law firm and does not give legal advice. It compares the times and places sworn to in an affidavit of service against records the person supplied, and reports where the two do not fit.